

ZOCDOC ADVERTISING ADDENDUM

This Zocdoc Advertising Addendum (the “Advertising Addendum”) contains terms and conditions that apply to User’s use of the Services set forth in this Advertising Addendum. This Advertising Addendum is incorporated by reference into the Zocdoc User Agreement (“Agreement”) entered into by the parties. All terms not defined herein shall have the meanings set forth in the Agreement.

BY CLICKING ON AN “ACCEPT” OR “AGREE” BUTTON, OR ACCESSING OR OTHERWISE USING THE SERVICES SET FORTH IN THIS ADVERTISING ADDENDUM, YOU HEREBY REPRESENT AND WARRANT THAT YOU ARE DULY AUTHORIZED TO ENTER INTO AND BIND USER AND PRACTICE TO THE TERMS AND CONDITIONS OF THIS ADVERTISING ADDENDUM, AND ACKNOWLEDGE AND AGREE THAT ALL SUCH USE BY USER IS SUBJECT TO SUCH TERMS AND CONDITIONS. IF YOU DO NOT AGREE TO THESE TERMS OR ARE NOT AUTHORIZED TO BIND USER, THEN DO NOT CLICK THE “ACCEPT” OR “AGREE” BUTTON AND USER IS NOT LICENSED OR PERMITTED TO USE THE SERVICES SET FORTH IN THIS ADVERTISING ADDENDUM. ALL OTHER USES OF THE SERVICES SET FORTH IN THIS ADVERTISING ADDENDUM ARE STRICTLY PROHIBITED.

1. **Definitions.**

“Ad” means any advertisement placed by Zocdoc pursuant to this Advertising Addendum and any IO entered into between the parties.

“IO” means a binding insertion order that incorporates this Advertising Addendum, under which Zocdoc will deliver Ads on the Zocdoc Site for the benefit of the User.

2. **Ad Services.**

In exchange for payment by User of the Ad fee specified in the IO (which shall be incorporated herein by reference) (“Ad Fee”) and subject to the terms and conditions set forth herein, Zocdoc agrees to arrange for the placement of User’s Ad(s) in accordance with the placement details set forth in the IO (“Ad Services”). For the avoidance of doubt, Services (as defined in Section 1.a of the Zocdoc User Agreement) shall include the Ad Services.

3. **Insertion Orders.**

a. **IO Details.** From time to time, User may request IOs that will specify: (a) a description of the Ad Services to be rendered pursuant to the IO, (b) the Ad Fee, (c) the start and end dates of the Ad Services, and (d) to the extent applicable, Ad placement details.

b. **Availability.** Zocdoc may notify User if the Ad placement in an IO is not available. Acceptance of the IO by Zocdoc shall be deemed to occur the earlier of (i) written (including email) acceptance of IO by Zocdoc, or (ii) the display of the first Ad by Zocdoc in accordance with the placement pursuant to the IO.

c. **Revisions.** Any revisions to accepted IOs requested by User shall be made in writing. Zocdoc is under no obligation to accept such revisions, and no revision shall be binding upon Zocdoc unless accepted by Zocdoc in writing.

d. **Billing; Payment.** Billing of all Ad Fees shall be based on Zocdoc data. Billing disputes, if any, must be raised on or before the payment due date set forth in the applicable IO. Any billing dispute not raised on or before fifteen (15) days of the date of the applicable Ad Services shall be deemed waived by User. Zocdoc will invoice User the Ad Fees in advance, and invoice payments are due within thirty (30) days of the date of the invoice. All amounts due and owing by the User under this Advertising Addendum that are not paid by the due date shall bear interest at the rate of the lesser of one and one half percent (1.5%) per month or the maximum amount permissible by law. Upon termination of the Zocdoc User Agreement or an IO for any reason, User shall pay to Zocdoc all Ad Fees due for Ad Services rendered up to and including the

effective date of termination. Zocdoc shall not refund to User Ad Fees due and payable or paid prior to expiration or termination of the Zocdoc User Agreement or an IO.

4. Reporting.

a. Confirmation. Zocdoc will, within a reasonable number of days prior to the start date on the IO, provide written confirmation to User, stating whether the components of the IO have begun delivery.

b. Other Reporting. Zocdoc will provide User reports on a regular basis, in writing, summarizing Ad placement, clicks and other data determined by Zocdoc at its sole discretion.

5. Termination of IO; Rejection/Retraction of an Ad.

Zocdoc may terminate an IO immediately, with regard to User and/or any Practice Member, in the event (a) that a Practice Member breaches any representation or warranty set forth in the Agreement or this Advertising Addendum, (b) User and/or any Practice Member repeatedly reschedules or cancels appointments, (c) a Practice Member engages in inappropriate or unprofessional conduct, or (d) of User's material breach of its obligations under this Advertising Addendum, which breach is not cured within ten (10) days of notice by Zocdoc. In addition, Zocdoc reserves the right, in its sole discretion, to accept, retract or reject at any time, any Ad placement requested in any IO whether on the basis of this Advertising Addendum or the Agreement, due to any technical reasons, or for any other reason.

6. Indemnification.

User will defend, indemnify, and hold harmless Zocdoc from damages, liabilities, costs, and expenses (including reasonable attorneys' fees) resulting from any claim, judgment, or proceeding brought by a third party resulting from (a) User's breach of any obligations in this Advertising Addendum, or (b) the content or

subject matter of any Ad to the extent provided or approved by User.

7. Data Use and Ownership, and Privacy.

a. Data Use and Ownership. Notwithstanding any other provision herein, all data generated by Zocdoc in connection with an IO or provided by or on behalf of Zocdoc to User in connection with the performance of an IO shall be owned exclusively by Zocdoc, provided that, a User may use any data provided by Zocdoc for its internal purposes only. Notwithstanding the foregoing or any transaction entered into with a consumer as a result of Ads placed under an IO, User will not use (or allow any third party to use) the status of an individual as a user of the Zocdoc Site or the Services as the basis for targeting communications to such individual without Zocdoc's prior written consent. By way of example, User may not develop a list of individuals who respond to Ads placed hereunder and then use an individual's status as a member of that list, either internally or externally, for the purpose of targeted communications to such individual.

b. Privacy Policy. User must not use any information obtained pursuant hereto in any manner that is prohibited by the Zocdoc privacy policy (<http://zocdoc.com/privacypolicy>), and Zocdoc may immediately terminate any IO without penalty or refund to the extent the foregoing obligation is breached.

8. Ad Serving, Tracking and Data Collection.

Nothing in this Advertising Addendum or in an IO shall be construed to permit User to independently engage in any third party ad serving or tracking, or otherwise gather data from or in connection with the Zocdoc Site and Services.

9. **Feedback.** User is under no obligation to provide any suggestions, ideas, enhancement requests, feedback, recommendation or other information about the Ad Services, any Ads, or

any part thereof ("Feedback"). User hereby assigns all right, title and interest (including without limitation intellectual property rights and interests) in and to Feedback and any modifications or derivative works thereof to Zocdoc. To the extent such assignment cannot be effectuated, User hereby grants to Zocdoc a royalty-free, worldwide, perpetual license to use or incorporate any Feedback into any service offered or provided by Zocdoc.

10. Limitation of Liability.

NOTWITHSTANDING ANYTHING SET FORTH IN SECTION 9.b OF THE AGREEMENT TO THE CONTRARY, TO THE MAXIMUM EXTENT PERMITTED BY LAW, IN NO EVENT WILL THE MAXIMUM AGGREGATE LIABILITY OF ZOCDOC OR ITS PARTNERS, VENDORS, SUPPLIERS OR LICENSORS FOR ANY LOSS OR DAMAGES, WHETHER BASED IN CONTRACT, TORT OR ANY OTHER FORM OF ACTION, RELATING TO OR ARISING OUT OF THE AD SERVICES OR THIS ADVERTISING ADDENDUM EXCEED THE GREATER OF \$100 AND THE AD FEES PAID TO ZOCDOC DURING THE PREVIOUS TWELVE (12)-MONTH PERIOD.

11. Termination; Survival.

This Advertising Addendum shall terminate immediately upon expiration or termination of the Agreement. The following shall survive expiration or termination of this Advertising Addendum: Sections 1, 3.d, and 5-11 hereof, and all other terms which by their nature should survive.

12. Miscellaneous.

No modification, amendment or waiver of this Advertising Addendum or any of its provisions shall be binding upon Zocdoc unless made in writing and agreed to by Zocdoc. Zocdoc may amend the terms and conditions of this Advertising Addendum by posting a notice on the User Account Page at least thirty (30) days prior to such change taking effect, provided that if User does not agree to such changes, User may

terminate this Advertising Addendum without penalty by providing Zocdoc with written notice of such election prior to such modification taking effect. User's continued use of the Services set forth in this Advertising Addendum following such period shall be deemed to be User's acceptance of such change. Except as expressly modified as set forth herein, the Agreement is hereby ratified and confirmed in all respects and shall remain in full force and effect. In the event of a conflict between this Advertising Addendum and the Agreement, the Agreement shall prevail except to the limited extent that the conflicting terms in the Agreement are expressly cited and superseded by the terms of this Advertising Addendum, in which case the terms of this Advertising Addendum will prevail. This Advertising Addendum, the Agreement, and the applicable IOs, constitute the entire agreement between the parties and supersede all previous or contemporaneous agreements, promises, representations, whether written or oral, between the parties with respect to the subject matter hereof.